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ORIGINAL 060(2)
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BEFORE THE FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant,

v.

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND
FORWARDING SERVICES, INC.
an Illinois corporation, d/b/a
W.E.S.T. FORWARDING SERVICES,
(FMC Lic. # 3118-R),

Respondent.

01 APR 11 PM 4:13

U.S. DEPARTMENT OF JUSTICE
FEDERAL MARITIME COMMISSION
Docket No. 00-04

COUNTER-COMPLAINT

I. The Counter-complainant, World Express Shipping, Transportation and Forwarding Services, Inc., d/b/a W.E.S.T. Forwarding Services ("W.E.S.T."), is an Illinois corporation, with its principal place of business at 729 Route 83, Suite 307, Bensenville, Illinois, 60106, U.S.A. W.E.S.T. is in the business of providing freight forwarding services, and is registered with the Federal Maritime Commission as FMC Lic. #3 118-R. As a freight forwarder, W.E.S.T. is only responsible for arranging the transportation and is not responsible for the carrier's conduct or for problems that arise during carriage.

II. The Counter-Respondent, AL Kogan, d/b/a Galaway International ("KOGAN"), is upon information and belief, an Illinois corporation with its principal place of business at 114 Harvard Court, Glenview, Illinois, 60025, U.S.A. KOGAN is engaged in the business of exporting goods.

III. The Federal Maritime Commission has jurisdiction over this dispute between W.E.S.T. and KOGAN pursuant to 46 U.S.C. § 1701, *et seq.*, and 46 C.F.R. Chap. IV, § 501.2(a), because W.E.S.T. acted as KOGAN's ocean freight forwarder for the shipment of container number ZCSU214858-0, which departed Chicago, Illinois, on or about February 26, 1998 with a final destination of Moscow, Russia.

IV. That the following occurred by and between Counter-complainant and Counter-respondent:

A. In early 1998, W.E.S.T. was retained by KOGAN to arrange for various shipments and to procure carriers for various shipments. In February, 1998, KOGAN asked W.E.S.T. to procure a carrier for a shipment from Chicago to Moscow via Kotka, Finland.

B. KOGAN also instructed W.E.S.T. to procure the carrier offering the lowest rate, Atlantic Ocean Line ("AOL"), a New York, non-vessel operating carrier ("NVOCC"). KOGAN also instructed W.E.S.T. that the carrier was to ship the goods through the port of Kotka, Finland.

C. In accordance with KOGAN's instructions, W.E.S.T. specifically instructed AOL that the shipment was to go from Chicago to Moscow by way of Kotka. AOL issued a bill of lading correctly evidencing Kotka as the port of transit. A true and correct copy of this bill of lading is attached hereto as Exhibit 1.

D. AOL sent this bill of lading to Faith Krzeminski, export manager of W.E.S.T. for approval. W.E.S.T. approved the bill of lading and booked with AOL based upon AOL's representations and the information contained in the bill of lading attached hereto as Appendix 1.

E. AOL then, for its own internal economic reasons and without authorization from anyone at W.E.S.T. issued a second bill of lading, this time showing that the container was being

shipped to Odessa on the Black Sea. A true and correct copy of this second bill of lading is attached hereto as Exhibit 2.

F. As soon as W.E.S.T. discovered the change that AOL made unilaterally and without authorization, Faith Krzeminski of W.E.S.T. contacted KOGAN to inform him of the carrier's unauthorized change of route.

G. W.E.S.T. learned that the container was stopped in Haifa awaiting oncarriage to Odessa.

H. KOGAN insisted in no uncertain terms that the port of transshipment be changed back to Kotka. KOGAN added that W.E.S.T. was to do whatever it had to do, to get the container to Kotka , and that KOGAN would pay the necessary expenses incurred in so doing.

I. W.E.S.T. exercised its best efforts to get the container re-routed. W.E.S.T. immediately contacted AOL numerous times, both in writing and by telephone to convince it to re-route the container back through Kotka. A true and correct copy of each of the letters sent by Jean De Keyser, president of W.E.S.T. to AOL is attached hereto as Exhibit 3, numbers 1, 2, 3.

J. In light of AOL's obstinance and refusal to comply with W.E.S.T.'s requests, W.E.S.T. contacted Mr. Joseph Farrell of the Federal Maritime Commission ("FMC"). A true and correct copy of the letter sent by Mr. De Keyser of W.E.S.T. to Joe Farrell of the FMC, is attached hereto as Exhibit 4. W.E.S.T. was also obligated to engage the services of counsel both in the United States and in Israel for assistance in getting AOL to re-route the container to Kotka.

K. W.E.S.T.'s efforts proved successful, since the container was eventually rerouted to Kotka.

L. Once the container was in Haifa, AOL delivered the three original bills of lading to Zim, the ocean vessel carrier that performed the actual transportation, and instructed Zim to release the container to KOGAN.

M. Zim issued a bill of lading rerouting the container from New York through Kotka to Moscow, and delivered the three original bills of lading to W.E.S.T. W.E.S.T. immediately submitted two of the original bills of lading to KOGAN. Instead of authorizing that W.E.S.T. arrange for the immediate release of the container, KOGAN, for reasons unknown to W.E.S.T., permitted the container to remain in Kotka for a length of time.

N. In the meantime, W.E.S.T. was retained by KOGAN to arrange for other shipments.

O. Sometime in August of 1998, KOGAN contacted Mr. De Keyser of W.E.S.T. and informed him that KOGAN had found a customer for the subject container still sitting in Kotka. Accordingly, at KOGAN's request, Mr. DeKeyser used the one original bill of lading he still possessed and had the container released. W.E.S.T. also persistently encouraged KOGAN to initiate legal proceedings against AOL, but all to no avail.

P. The Haifa/Kotka shipment accrued freight charges of \$5,440.10 billed in invoice CHE-030492 and of \$7,671.40 billed in invoice CHE-030492. W.E.S.T. has made numerous and repeated attempts to collect these charges from KOGAN, but KOGAN has refused to make payment.

V. That by reason of the facts stated in the foregoing paragraphs, Counter-complainant has been and still is being subject to injury as a direct result of the violation by Counter-respondent of the following:

Section 10(a) of the Shipping Act of 1984, 46 U.S.C. § 1709 (a)(1) ("1984 Act"),

which states:

No person may

(1) knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or by any other unjust or unfair device or means obtain or a t t e m p t to obtain ocean transportation for property at less than the rates or charges that would otherwise be applicable;

(emphasis added). W.E.S.T. did provide to KOGAN at KOGAN's specific instance and request, on various dates more specifically set forth in Exhibit 5 attached hereto and made a part hereof, those freight forwarding services which are described therein or are the nature of which W.E.S.T. generally performs as a freight forwarder. The balance owing by KOGAN for W.E.S.T.'s freight forwarding services is in the sum of \$13,611.50, as indicated in Exhibit 5.

W.E.S.T. has made numerous demands of KOGAN to pay this outstanding amount. Despite W.E.S.T.'s repeated efforts at obtaining payment for its services, KOGAN has consistently and unjustifiably refused to make payment. KOGAN's refusal to satisfy its legal obligations to W.E.S.T. are all the more illegal, since upon faith and belief, the container was delivered. Moreover, it was only when W.E.S.T. began to press KOGAN for payment of its services rendered and costs incurred by W.E.S.T. at KOGAN's specific instance and request, particularly when W.E.S.T. filed suit against KOGAN in Illinois state court (Case No.: 99 MI 116394), did KOGAN retaliate by making unjustified allegations against W.E.S.T., all in a desperate attempt to avoid its legal obligations to W.E.S.T. At no time prior to W.E.S.T.'s filing suit in the related state court case, did KOGAN indicate dissatisfaction with W.E.S.T.'s services. By refusing to make payment on the total charges incurred by W.E.S.T. for its services, KOGAN is attempting to obtain ocean transportation for property at less than the rates or charges

that apply to this shipment. The complaint filed by KOGAN before this Commission is merely an example of its continuing efforts to avoid its legal obligations to W.E.S.T. In light of all the foregoing, KOGAN's conduct is in complete violation of 46 U.S.C. § 1709(a)(1).

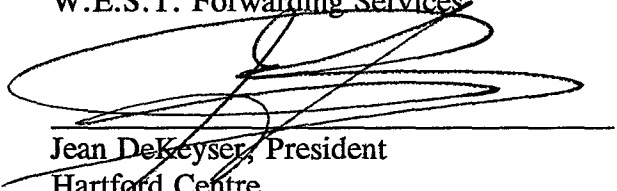
VI. That Counter-complainant has been injured in the following manner: To its damage in the sum of \$13,611.50, plus interest from the date of violation, attorneys fees, expenses and costs in the related state court case (Case No.: 99 M1 116394) as well as interest and attorneys fees, expenses and costs in this Federal Maritime Commission action. Counter-complainant in accordance with 46 C.F.R. § 502.44, has considered all possible respondents that should be joined in its Counter-complaint and is of the belief that no other person should be joined, other than KOGAN.

Prayer for Relief

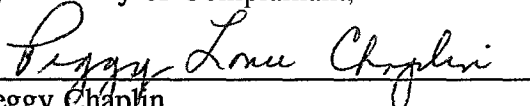
VII. **WHEREFORE**, Counter-complainant prays that Counter-respondent be required to answer the charges herein; that after due hearing, held in Washington, D.C., an order be made commanding said Counter-respondent: to cease and desist from the aforesaid violation of said Act; to establish and put in force such practices as the Commission determines to be lawful and reasonable; to pay to said Counter-complainant by way of reparation for the unlawful conduct hereinabove described the sum of \$13,611.50, with interest and attorneys fees; to pay to said Counter-complainant penalties pursuant to section 13 of the 1984 Act, 46 U.S.C. § 1712, in an amount to be determined by the Commission, for KOGAN's wilfull and knowing violation of the Act or such other sum as the Commission may determine to be proper as an award of reparation; and that such other and further orders be made as the Commission determines to be proper in the premises.

Dated at Baltimore, Maryland, this 7th day of April, 2000.

World Express Shipping Transportation
and Forwarding Services, Inc., d/b/a
~~W.E.S.T. Forwarding Services~~

By: 
Jean DeKeyser, President
Hartford Centre
729 Route 83, Suite 307
Bensenville, IL 60106

By **Attorney** of Complainant,


Peggy Louie Chaplin
SANDLER, TRAVIS & ROSENBERG, P.A.
111 South Calvert Street
Baltimore, MD 21202
Telephone: (410) 3855208
Facsimile: (410) 837-2441

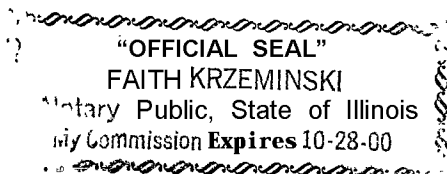
VERIFICATION

STATE OF ILLINOIS)
) ss.:
COUNTY OF COOK)

Jean **DeKeyser**, being first duly sworn on oath deposes and says that he is president of World Express Shipping Transportation and Forwarding Services, Inc. doing business as W.E.S.T. Forwarding Services, and is the person who signed the foregoing Complaint; that he has read the Complaint and that the facts stated therein, upon information received from others, **affiant** believes to be true.

Subscribed and sworn to before me, a Notary Public in and for the State of Illinois,
County of Cook this 7th day of April, 2000.

My Commission Expires:



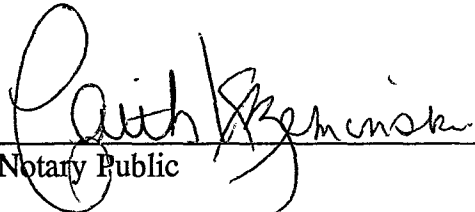

Notary Public

EXHIBIT 1

01/19/00 17:52 FAX 630 787 0377

WEST FORWARDING SERV.

03/13/1998 17:45 1-212-687-7087

003/005
PAGE 81

ATLANTIC OCEAN LINE CORP.

SHIPPER/EXPORTER

GALLAWAY INTERNATIONAL CO.
114 HARVARD COURT
GLENVIEW IL 60025

DOCUMENT NO.

3996AOL

BOOKING NO.

1ENYC9658

EXPORT REFERENCES

14125 WEST REF:CHE-030492

CONSIGNEE

WIEN CO., LTD.
13 (BLDG. A) KRASNOD MAYAKA STREET
MOSCOW 113570 RUSSIA

FORWARDING AGENT F.M.C. NO.

WEST FORWARDING
SERVICES 729 ROUTE 83,
STE 307 EMC 3118-R

POINT AND COUNTRY OF ORIGIN

GLENVIEW IL

NOTIFY PARTY

SAME AS ABOVE.
AND ATTN: ZOYA OR ANTON D

DOMESTIC ROUTING/EXPORT INSTRUCTIONS/DELIVERY AGENT

PRE-CARRIAGE BY

PLACE OF RECEIPT BY
PRE-CARRIER
CHICAGO

EXPORTING CARRIER

ZIM JAPAN

PORT OF LOADING/EXPORT
NEW YORK

LOADING 0 0000000000000000

FOREIGN PORT OF UNLOADING

KOIKA

PLACE OF DELIVERY BY
ON-CARRIER
MOSCOW

TYPE OF MOVE

RAMP /PORT

CONTAINERIZED
YES NO

MARKS AND NUMBERS

NUMBER
OF PACKAGES

PARTICULARS FURNISHED BY SHIPPER

DESCRIPTION OF PACKAGES AND GOODS

GROSS WEIGHT

MEASURE

LX40

STD CONTAINER S' TC 2359 CASES

28621 Lb. 1004.2

0

AUTO CARE PRODUCTS NON HAZARDOUS

12982 Lb. 28.44

FREIGHT PREPAID

0

AS
ADDRESSED
CNTR#ZCSU214353-

0 Lb. 0

0

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SOFTWARE WERE EXPORTED FROM THE U.S. IN
ACCORDANCE WITH THE EXPORT
ADMINISTRATION REGULATIONS. DIVERSION TO
THE U.S. LAW PROHIBITED

0 Lb. 0

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

ATTN:
FAITH
FOR APPROVAL

Received by Carrier for shipment by ocean vessel between port of loading and port of discharge for arrangement or placement of pre-carriage from place of receipt and delivery to place of shipment where stipulated above. The goods as specified above in apparent good order and condition unless otherwise stated. This receipt is to be delivered at the (place mentioned) port of discharge or of delivery whereupon the subject above to the exceptions, limitations, conditions and so on set out on the reverse side hereof, in which the Shipper and/or Consignee agree to accept the bill of lading, COLORED WITH:

NON NEGOTIABLE PROOF OF DELIVERY OF LADING HAS BEEN SIGNED, NOT OTHERWISE VALID.

DATED AT

BY

ATLANTIC OCEAN LINE CORP.

B/L NO.

NO.

DAY

YEAR

MAR 09 1998

630-787-

01/19/00 17:52 FM 630 787 0377

WEST FORWARDING SERV.

004/005
PAGE 01

03/23/1998 10:39 1-212-687-7087

ATLANTIC OCEAN LINE CORP.

SHIPPER/EXPORTER

GALLOWAY INTERNATIONAL COMPANY
114 HARVARD COURT
CLEANVIEW, IL 60025 USACONSIGNEE
WEIN CO., LTD.13 (BUILDING #4) KRASNOGO MAYAKA STREET
MOSCOW 113570 RUSSIA
TEL-7095-3812740 FAX-7095-3812770

NOTIFY PARTY

SAME AS ABOVE

ATTN: ZOYA OR ANTON DANEHEV

DOCUMENT NO.

BOOKING NO.

EXPORT REFERENCES

REF#3896AOL

BK#1ENYCS653

YOUR REF# CHE 030482

SHIPPERS REF# 14125

FORWARDING SERVICES

729 ROUTE 83, STE 307

BENSENVILLE, IL 60108

REF#CHB14627

POINT OF ORIGIN COUNTRY OF ORIGIN

DOMESTIC ROUTING/EXPORT INSTRUCTIONS/DELIVERY AGENT

PRE-CARRIAGE BY

PLACE OF RECEIPT BY
PRE-CARRIER

CHICAGO

EXPORTING CARRIER
ZIM JAPAN VOY.21PORT OF LOADING/EXPORT
NEW YORK

LOADING PIER/TERMINAL

FOREIGN PORT OF UNLOADING
KOTKAPLACE OF DELIVERY BY
MOSCOWTYPE OF MOVE
RAMP/PORTCONTAINERIZED
☐ YES ☐ NO

MARKS AND NUMBERS

NUMBER
OF PACKAGESPARTICULARS FURNISHED BY SHIPPER
DESCRIPTION OF PACKAGES AND GOODS

GROSS WEIGHT

MEASUREMENT

CONTAINER#
ZCSU214858-0
SEAL # 15340897

1X40

STD CONTAINER STC 2359 CASES
AUTO CARE PRODUCTS NON HAZARDOUS.
FREIGHT PREPAID28,821LBS
12982KG1004.15CFT
28.44CBMSHIPPER LOAD STOW
& COUNT

NO SED REQUIRED, SECTION 30.39 FTRSR, C.A.S.-WWW

THESE COMMODITIES TECHNOLOGY OR SOFTWARE WERE EXPORTED FROM
THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION
REGULATIONS. DIVERSION CONTRARY TO US LAW PROHIBITED.

ORIGINAL

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

Received by Carrier for shipment by ocean vessel between port of loading and port of discharge for transportation or movement of merchandise from place of receipt and discharge to all other ports, unless stated above. The goods are specified above in appropriate gross weight and cubic volume dimensions stated. The goods to be delivered at the above mentioned port of discharge or port of delivery, whichever is applicable, subject always to the conditions, regulations, conditions and terms set out in the reverse side hereof, to which the shipper and/or Consignee agree to accede and be bound. CONTAINED WITHIN THE VESSEL'S TONNAGE OF THE (1) original Bill of Lading have been agreed, not otherwise a receipt, one of which being acknowledged the others shall be void.

DATED AT

BY

ATLANTIC OCEAN LINE CORP.

B/L NO.

NO.

DAY

YEAR

03/09/98

NEW YORK

TOTAL PREPAID

TOTAL COLLECT

01/19/00 17:52 FAX 830 787 0377

WEST FORWARDING SERV

005/00

GALLANAY INTERNATIONAL CO.
114 HARVARD COURT
GLENVIEW, IL 60025

1ENYC9658

SHIPPER'S REF: 14125

WEST REF: CHE-030492

WEIN CO., LTD.
11 (BLDG. 4) KRASNOGO MAYAKA STREET
MOSCOW 113570 RUSSIA
PH: 7095 3612740 FX: 7095 3612770

WEST FORWARDING SERVICES
729 ROUTE 83, STE 307 PNC 2118-2
BENSENVILLE, IL 60106 CHE14627

IL USA

SAME AS ABOVE
AND ATTN: ZOYA OR ANTON DANYHEV

CHICAGO

ZEM JAPAN V. 21

NEW YORK

MOTKA

MOSCOW

T/D

AS ADDRESSED
CONTAINER NO:
205U 214858-0
S/N:15940897

1

X 40' CONTAINER STC 2359 CASES
AUTO CARE PRODUCTS NON-HAZARDOUS

28621.6#
12982.5K

1004.15
28.44

SHIPPER'S LOAD
STOW & COUNT

FREIGHT PREPAID

NO SED REQUIRED. Section 30.39 FT&K. C.A.S. - WW.

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PAGES PREP. NO. REPORT NAME

STATION NAME TELEPHONE NO.

FILE NO. - 113

END-11 13:14

START-11 13:14

MODE = MEMORY TRANSMISSION



EXHIBIT 2



SHIPPER/EXPORTER GALLAWAY INTERNATIONAL CO 114 HARVARD COURT GLENVIEW IL 60025		DOCUMENT NO. 3996AOL		BOOKING NO. 1ENYC9658	
CONSIGNEE WIEN CO., LTD. 13 (BLDG. 4) KRASNOGO MAYAKA STREET MOSCOW 113570 RUSSIA		EXPORT REFERENCES 14125 WEST REF: CHE-030492		FORWARDING AGENT F.M.C. NO. WEST FORWARDING SERVICES 729 ROUTE 83, STE 307 FMC 3118-R	
NOTIFY PARTY SAME AS ABOVE. AND ATTN: ZOYA OR ANTON D		POINT AND COUNTRY OF ORIGIN GLENVIEW IL		DOMESTIC ROUTING/EXPORT INSTRUCTIONS/DELIVERY AGENT	
PRE-CARRIAGE BY XXXX		PLACE OF RECEIPT BY RE-CARRIER CHICAGO		LOADING PIER/TERMINAL	
EXPORTING CARRIER ZIM JAPAN		PORT OF LOADING/EXPORT NEW YORK		TYPE OF MOVE RAMP /PORT	
FOREIGN PORT OF UNLOADING ODESSA		PLACE OF DELIVERY BY IN-CARRIER MOSCOW		CONTAINERIZED ☐ YES ☐ NO	
MARKS AND NUMBER!	NUMBER OF PACKAGES	PARTICULARS FURNISHED BY SHIPPER DESCRIPTION OF PACKAGES AND GOODS		GROSS WEIGHT	MEASUREMENT
CONTAINER #	1x40	STD CONTAINER STC 2359 CASES		Lb.	
ZCSUZ14858-0		AUTO CAKE PRODUCTS NON HAZARDOUS		28621 Lb.	28.44
SEAL #: 159408	0	FREIGHT PREPAID		Lb.	
		THESE COMMODITIES TECHNOLOGY OR SOFTWARE WERE EXPORTED FROM THE U.S. IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS DIVERSION THE U.S. LAW PROHIBITED		LX	

FREIGHT RATES MARGES, WEIGHTS AND/OR MEASUREMENTS

SUBJECT TO CORRECTION

PREPAID

COLLECT

TOTAL PREPAID

TOTAL COLLECT

Received by Carrier for shipment by ocean vessel between port of loading and port of discharge, for arrangement or procurement of pre-carriage from place of receipt and on-carriage to place of delivery, where stated above. The shipper warrants that the goods are in apparent good order and condition at the time of delivery, which is subject to the exceptions, limitations, conditions and liabilities set out on the reverse side hereof, to which the Shipper and/or Consignee agree in accepting the bill of lading. CO-LOADED WITH: IN WITNESS WHEREOF three (3) original Bills of Lading have been signed, not otherwise as above, one of which being accomplished the others shall be void.

DATED AT

BY

ATLANTIC OCEAN LINE CORP.

BL NO. 3996AOL NO.

03

DAY 09

YEAR 96

EXHIBIT 3

EXHIBIT 3-A

W.E.S.T. FORWARDING SERVICES**Hartford Centre, Ste 307****729 Route 83****Bensenville, IL 60106****TEL: (630) 787 0350 - FAX: (630) 787 0377****WebPage: <http://www.westfdg.com>****CHICAGO - CLEVELAND - MIAMI - NEW YORK****OVER A DECADE OF QUALITY SERVICE TO THE INTERNATIONAL TRADE**

March 30, 1998

Atlantic Ocean Line

Fax: (212) 687 7087

ATTN: Ms. Sherry**SUBJECT:** Soaking 1ENYC9658; 1 x 40' ZCSU214858; Zim Japan.

Dear Ms. Sherry.

Further to our telephone call of this morning, please note that we confirm that above captioned shipment was booked by us LO Moscow, via Kotka.

Your company accepted this booking and even issued a bill of lading to that effect, as evidenced by following copy and, as you know, an ocean bill of lading is a legally valid transportation document. Notwithstanding the fact that your documents show the port of Kotka, Finland, as the port of arrival for transshipment to Moscow, your office elected, without our approval, to ship the goods to Odessa, via Haifa.

Because of this serious error, the consignee has indicated that he will reject the merchandise if the goods are not delivered to him according to his original instructions. This would result in a legal claim for over \$80,000.00 against your company.

On behalf of our customers, we must strongly protest and instruct you to intercept this container and ship it to Kotka, by vessel, at your expense and without any further delay. Failure to comply with the terms of the transportation contract will result in our customer having to file a lawsuit as well as a complaint with the Federal Maritime Commission.

We look forward to your written confirmation, by return, that the goods will be rerouted to Moscow, via Kotka and by vessel. We will also expect to receive a new ETA and all other shipping details.

Awaiting your reply, we remain,

Yours truly,

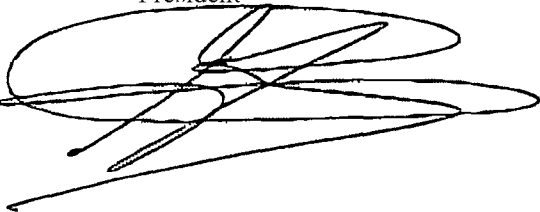
J.O. De Keyser
President

EXHIBIT 3-B

W.E.S.T. FORWARDING SERVICES

Hartford Centre, Ste 307

729 Route 83

Bensenville, IL 60106

TEL: (630) 787 0350 - FAX: (630) 7870377

Web Page: <http://www.westfwdg.com>

CHICAGO - CLEVELAND - MIAMI - NEW YORK

OVER A DECADE OF QUALITY SERVICE TO THE INTERNATIONAL TRADE

March 30, 1998

Atlantic Ocean Lines

Fax (212) 687 7087

TO THE ATTENTION OF THE PRESIDENT AND C.E.O.**SUBJECT: BOOKING 1ENYC9658; 1 X 40'ZCSU214858; ZIM JAPAN.**

Sir

Early this morning, I sent a fax message to Sherry in your office informing her about an error made by your services and I asked her to have someone call me back as soon as possible.

All day long, I have been waiting for a response and I have tried to get hold of someone in charge. Finally, late in the afternoon, I had the distinct displeasure of having a certain Mr. Raj on the phone who told me that he was the Manager and who refused to pass me on to someone higher up, i.e. the owner or President of the company.

When I explained that I was the owner and C.E.O. of W.E.S.T. Forwarding and your company's customer, I was told that this was of no importance and that I had to talk to him only. I insisted to know what he was doing to help us solve the problem. He refused to go into specifics, became abusive and rude and even insulting, stating that he wanted to talk to someone intelligent, like my lawyer, and not to me. He even slammed the phone down. Since we made the booking, we have only had problems with this Mr. Raj. The B/Ls had to be redone about six times, booking sheets were incorrect (showing Houston as port of departure). We were told that the container was going via Kotka, etc. When my staff tried to get matters resolved with Mr. Raj, he was equally abusive to them and he hung up on them too.

This kind of attitude is totally unacceptable. We paid your ocean freight charges and, as a customer, we expect to be treated with respect and in a courteous manner. If I were to employ people with such an attitude, I would be out of business in the shortest time.

I demand that this matter be resolved without any further delay and that I get to talk to you directly tomorrow morning.

Looking forward to your call. I remain.

Sincerely

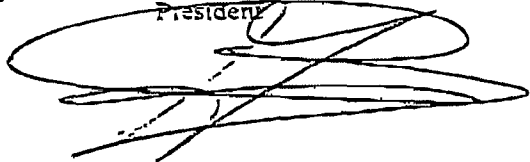
J. O. De Keyser
President

EXHIBIT 3-C

Hartford Centre, Ste 307
729 Route 83
Bensenville, IL 60106
TEL: (630) 787 0350 - FAX: (630) 787 0377
Web Page: <http://www.westfwlg.com>
CHICAGO - CLEVELAND - MIAMI - NEW YORK

OVER A DECADE OF QUALITY SERVICE TO THE INTERNATIONAL TRADE

March 31, 1998

Atlantic Ocean Lines
Fax: (212) 687 7087

FOR THE ATTENTION OF THE PRESIDENT AND C.E.O.

SUBJECT: BOOKING IENYC9658; 1 X 40'ZCSU214858; ZIM JAPAN

Sir,

We refer to our fax of yesterday to which we have not even received the courtesy of a reply.

We received the new B/Ls evidencing the fact that you have shipped the goods via Haifa to Odessa for delivery to Moscow. Our booking was via Moscow, via Kotka, as evidenced by the bill of lading you originally issued.

On behalf of the shipper, we instruct you to stop this container in Haifa and not forward it on to Odessa pending further written instructions from us or the shipper.

Our position remains that your company has ignored our instructions to ship the goods via Kotka. As a result, the consignee will most likely refuse the goods and we will hold you responsible for all damages resulting from your negligence.

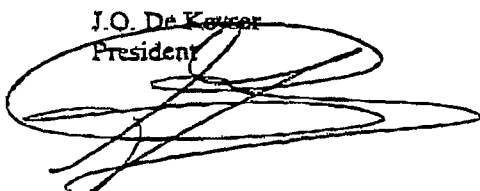
We also noted the refusal on the part of your "Mr. Raj" to re-route the goods to Kotka at your expense. If you maintain your refusal and in case the owner of the goods instructs us to arrange for this re-routing, we will reserve the right to sue you for the charges incurred to correct your mistake.

We demand, by return, your written confirmation that the container will be stopped in Haifa and that you will re-route it via Kotka. If you refuse to re-route the container via Kotka, we demand a full refund, by cashier's check, of the ocean freight charges.

We look forward to your answer by return.

Sincerely,

J.O. De Koeper
President



04/01/98
REMINDER

EXHIBIT 4

W.E.S.T. FORWARDING SERVICES**Hartford Centre, Ste. 307****729 Route 83****Bensenville, IL 60106****TEL: (630) 787 0350 - FAX: (630) 787 0377****WebPage: <http://www.westfwdg.com>****CHICAGO - CLEVELAND - MIAMI - NEW YORK****OVER A DECADE OF QUALITY SERVICE TO THE INTERNATIONAL TRADE**

April 3, 1998

Mr Joseph T. Farrell
 Director Office of Informal Inquiries and Complaints
 Federal Maritime Commission
 Washington, D C
 Fax: (202) 523 0014

Dear Sir.

Thank you very much for the copy of your fax, which you have sent to Mr Sharma at Atlantic Ocean Line but, unfortunately, your admonitions do not seem to have had a great effect on him.

This is what has happened since this fax

Early in the afternoon, Mr. Ben Francis of A.O.L. called the shipper and told him that he would divert the container to Kotka but that he needed to get a fax from the shipper to confirm that all A.O.L.'s charges would be paid. When the shipper asked him what the charges would be Ben Francis became very evasive and kept asking for the fax. The shipper then sent him a fax asking, in writing, for the charges but, of course and as usual, never received a reply

By then, I had received a copy of your fax, which I sent to the shipper. He, in turn, called Ben Francis again who told him the container was on its way between Haifa and Moscow and that it would be delivered to the customer in Moscow. The other character in this comedy "Raj", told the shipper that the container would definitely arrive in Moscow on or around April 5th.

Ben Francis even told the shipper that he had just spoken with Mr Andy Llanes, "Senior Vice President" at ZIM who had told him that the container was indeed on its way to Moscow and that nothing could be done to stop it now

I then called Mr. Llanes, who in fact is the Sales Manager at ZIM and not a Senior V.P. He told me that Mr. Francis never called him but that he had received a call at around 4:00pm from Mr Andy Sharma of Eastern Mediterranean Shipping Co. (!). Mr. Sharma asked Mr. Llanes where the container was, Mr. Llanes told him that he did not know and that he had to ask one of the members of his staff, who was already gone for the day. Mr. Sharma then asked him to send him a fax stating that the container was on its way from Haifa to Moscow, via Odessa. Mr. Llanes answered that he could not do this without knowing where the box was.

After I explained my predicament to Mr. Llanes, he volunteered to me that the container had indeed been booked with ZIM by A.O.L. It shows Atlantic Ocean Lines as the shipper and shows our customer's consignee Wien Co in Moscow, as the consignee on the ZIM B/L. This means that, basically this container could be released by A.O.L. to Wien Co, without the approval and authorization of our customer.

It is now obvious that A.O.L. continues to act with a reckless disregard of all accepted international business and shipping practices and that they have a pattern of lying and deceiving their customers in a shameless way.

Because they have refused to give instructions to ZIM to stop the container in Haifa, there is now a great likelihood that it will move beyond our control to Moscow, where the consignee will reject the goods.

I thought it useful for you to know that Mr Sharrna and his associates just keep on disregarding all instructions from their customers and the Federal Maritime commission.

I have sent a fax to my agent in Haifa with the request to appoint a lawyer to file a petition in court for an injunction against ZIM in order to stop the transshipment of the container.

If you wish to discuss this further, you will be able to reach me on Monday in Miami at (305) 513 0337

Always at your disposal and thanking you again for any assistance you have provided. I remain,

Yours truly,

Jean "John" De Koyser
President

C.c: Mr Al Cogan, Gallawy Int'l.
Mr Jeff A. Victor Treatment Products
Mr Paul Byrne, O'Donnell. Byrne & Williams

COLLECTIVE EXHIBIT 5

W.E.6. FORWARDING SERVICES, INC.
 729 ROUTE 83, SUITE 307
 BENSENVILLE, IL 60106
 PH: 630-787-0350 FAX: 630-787-0377

STATEMENT OF ACCOUNT

OCTOBER 02, 1998

TO: GALAWAY INTERNATIONAL CO(GALL4)
 114 HARVARD COURT
 GLENVIEW, IL 60025

TERMS: NET DUE UPON RECEIPT

PHONE: 847-559-0875
FAX: 847-559-0516

ATTN: AL KOGAN

Ref Date	Due Date	Reference	Our Reference	Amount	Balance
03/16/98	03/16/98	CHE-030492	CHE-030492	5,440.10	5,440.10
05/22/98	05/22/98	CHE-030492-2	CHE-030492	7,671.40	7,671.40
04/17/98		CHE-030560	CHE-030560	6,861.56	6,861.56
04/24/98	04/17/98 CK1461	CHE-030560	CH E-030560	-6,361.56	500.00

Totals . . .

TOTAL OPEN	\$ 13,611.50
CURRENT	\$ 0.00
LESS THAN 60 DAYS	\$ 0.00
LESS THAN 90 DAYS	\$ 0.00
LESS THAN 90 DAYS	\$ 13,611.50



FMC 3118-R
CMB 14827

WORLD EXPRESS SHIPPING, TRANSPORTATION AND FORWARDING SERVICES INC., D/B/A
W.E.S.T. FORWARDING SERVICES
HEAD OFFICE: 728 ROUTE 83, SUITE 307, BENSENVILLE, IL 60108 (830) 787-0350 FAX (830) 787-0377

CUSTOMER
REF.

GALLAWAY INTERNATIONAL CO
114 HARVARD COURT
GLENVIEW, IL 60025

INVOICE NO. CHE-030492

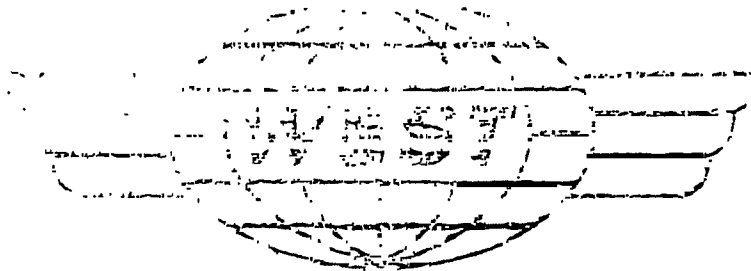
DATE , 03/16/98

ACCOUNT NO, GALLA

	SHIPPER/CUSTOMER REF.	BL#
	VESSEL OR CARRIER NAME ZIM JAPAN V. 21	HWS#

DESCRIPTION AND/OR ENCLOSURES

CE OCN FREIGHT	AMOUNT 4535.00
CE INLAND	225.00
CE FORWARDING	100.00
MESSENGER/COURIER	55.00
CE INSURANCE	525.10
INVOICE TOTAL	=====
	5340.10



Law suit in Israel

If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges in the event the charges are not paid by the broker. Therefore, if you pay by check Customs charges may be paid with a separate check payable to the "U.S. Customs Service."

PAYABLE UPON PRESENTA

EXHIBIT NO. _____

FILE



WORLD EXPRESS SHIPPING TRANSPORTATION & FORWARDING SERVICES INC. D/B/A

WEST. FORWARDING SERVICES

HEAD OFFICE: 729 ROUTE 83, SUITE 307, BENSONVILLE, IL 60109 (630) 757-0360 FAX (630) 757-0377

FMC 3718-A

CHB 14627

INVOICE NO. CHE-030492-2

CUSTOMER REFERENCE

TERMS AND CONDITIONS OF SERVICE

SALAWAY INTERNATIONAL CO. (INCORPORATED IN IL)

114 HARVARD COURT

SLENNVIEW, IL 60036

DATE

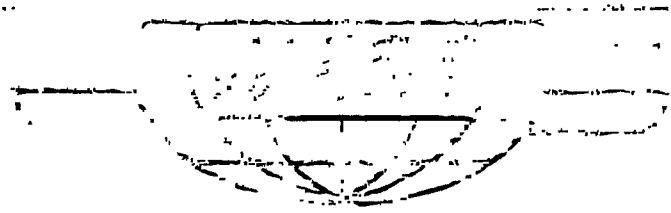
05/22/98

ACCOUNT NO. 6411A

SHIPPER/CUSTOMER REF.	BL#
VESSEL OR CARRIER NAME ZIM JAPAN V- 21	HWB#

DESCRIPTION AND/OR ENCLOSURES

	AMOUNT
CE OCN FREIGHT (HAIFA - MOSCOW)	3925.00
LAWYER IN ISRAEL	3000.00
LAWYER IN CHICAGO	246.40
AGENT IN ISRAEL (MS LINES)	500.00
INVOICE TOTAL	7671.40



If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with a separate check payable to the "U.S. Customs Service."

PAYABLE UPON PRESENTATION

EXHIBIT NO.



FMC 3118-R
- CHB 14627

WORLD EXPRESS SHIPPING, TRANSPORTATION & FORWARDING SERVICES INC. D/B/A
W.E.S.T. FORWARDING SERVICES
HEAD OFFICE: 729 ROUTE 83, SUITE 307, BENSenville, IL 60106 (830) 787-0350 FAX (830) 787-0377

INVOICE NO. CHE-030560

CUSTOMER

GALAWAY INTERNATIONAL CO
114 HARVARD COURT
GLENVIEW, IL 60025

DATE 04/17/98

ACCOUNT NO. GALLA

SHIPPER/CUSTOMER REF.	BL#
VESSEL OR CARRIER NAME MEDLOYD HOORN V. 1	HWA#

DESCRIPTION AND/OR ENCLOSURES

	AMOUNT
CE OCN FREIGHT	5950.00
CE INLAND (INCL. TREATMENT)	350.00
MESSANGER/COURIER	55.00
CE FORWARDING	100.00
CE INSURANCE	406.56

INVOICE TOTAL

3831.56

4/24/98 6361.56 pd. #
500.00 Balance Due



If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with a separate check payable to the "U.S. Customs Service."

EXHIBIT NO. 11

PAYABLE UPON PRESENTATION

FILE

cc 020/030
060(2)
30
022

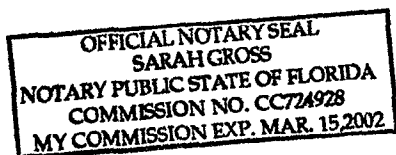
RECEIVED
CERTIFICATE OF SERVICE

GO APR 17 11 08 26
The undersigned, being first duly sworn upon oath, deposes and states that a copy of the foregoing Counter-Complaint was served by Federal Express this 13th of April 2000, upon Jonathan Clark Green, P C 350 North LaSalle Street, Suite 800, Chicago, IL 60610-4798

Francesca Russo-Di Staulo
Francesca Russo-Di Staulo

SUBSCRIBED and SWORN to
before me this 13th day of April, 2000

Sarah Gross
Notary Public



ORIGINAL

cc 020/030

RECEIVED

060(2)

30

022

BEFORE THE FEDERAL MARITIME COMMISSION

00 APR 17 PM 3:27

FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY)
INTERNATIONAL,)
)
Complainant,)
)
v.)
)
WORLD EXPRESS SHIPPING,)
TRANSPORTATION AND)
FORWARDING SERVICES, INC.)
an Illinois corporation, d/b/a)
W.E.S.T. FORWARDING SERVICES,)
(FMC Lic. # 3118-R),)
)
Respondent.)

Docket No. 00-04

NOTICE OF DEPOSITION

TO: Jonathan Clark Green, Esq.
350 North LaSalle Street
Suite 800
Chicago, IL 60610-4798

PLEASE TAKE NOTICE that the deposition of AL KOGAN, Complainant in the above captioned case, has been scheduled to be taken, pursuant to the Rules of the Federal Maritime Commission and the Federal Rules of Civil Procedure, on Monday, May 8, 2000, at the following time and place listed below, by an attorney for the Respondent, World Express Shipping Transportation and Forwarding Services, Inc., d/b/a W.E.S.T. Forwarding Services, before a Notary Public or some other officer authorized by law to administer oaths:

10:00 a.m.

SANDLER, TRAVIS & ROSENBERG, LLC

200 South Wacker Drive

Suite 3 100

Chicago, Illinois 60606

The deponent will be required to testify in all facts and circumstances surrounding the initiation of the subject shipment through to its conclusion. In addition, the deponent shall produce any and all documents in his possession related to the subject shipment.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.

The Waterford - Suite 600

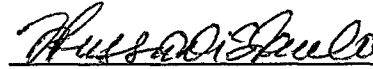
5200 Blue Lagoon Drive

Miami, Florida 33126

Telephone: (305) 267-9200

Facsimile: (305) 267-5 155

By:



Francesca Russo-Di Stauro

CERTIFICATE OF SERVICE

I FIEREBY CERTIFY that a true and correct copy of the foregoing Notice of Deposition was served by Federal Express upon the above named addressee this 13th day of April, 2000.



Francesca Russo-Di Staulo

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cc 020/030 06012
ORIGINAL 30
022

BEFORE THE FEDERAL MARITIME COMMISSION

60 APR 17 AM 9:49

FEDERAL MARITIME COMMISSION SECRETARY

AL KOGAN d/b/a **GALAWAY**)
INTERNATIONAL,)

Complainant,)

v.)

WORLD EXPRESS SHIPPING,)
TRANSPORTATION AND)
FORWARDING SERVICES, INC.)

an Illinois corporation, d/b/a)
W.E.S.T. FORWARDING SERVICES,)
(FMC Lic. # 3118-R),)

Respondent.)
/

Docket No. 00-04

NOTICE OF DEPOSITION

TO: Jonathan Clark Green, Esq.
350 North LaSalle Street
Suite 800
Chicago, IL 60610-4798

PLEASE TAKE NOTICE that the deposition of JEFF VICTOR, Vice-President of Treatment Products, Ltd., has been scheduled to be taken, pursuant to the Rules of the Federal Maritime Commission and the Federal Rules of Civil Procedure, on Monday, May 8, 2000, at the following time and place listed below, by an attorney for the Respondent, World Express Shipping Transportation and Forwarding Services, Inc., d/b/a W.E.S.T. Forwarding Services, before a Notary Public or some other officer authorized by law to administer oaths:

2:00 p.m.

SANDLER, TRAVIS & ROSENBERG, LLC

200 South Wacker Drive

Suite 3100

Chicago, Illinois 60606

The deponent will be required to testify in all facts and circumstances surrounding the initiation of the subject shipment through to its conclusion. In addition, the deponent shall produce any and all documents in his possession related to the subject shipment.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.

The Waterford - Suite 600

5200 Blue Lagoon Drive

Miami, Florida 33126

Telephone: (305) 267-9200

Facsimile: (305) 267-5 155

By:



Francesca Russo-Di Staulo

CERTIFICATE OF SERVICE

I **HEREBY** CERTIFY that a true and correct copy of the foregoing Notice of Deposition was served by Federal Express upon the above named addressee this 13th day of April, 2000.



Francesca Russo-Di Staulo

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